



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

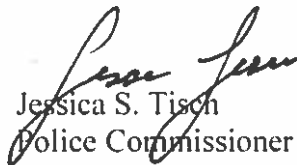
Re: Disciplinary Case No. 2023-28383 / PODS Case No. C-031682 regarding
Sergeant Robert Cox

Date: September 16, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Sergeant Robert Cox unlawfully arrested two individuals. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of Training, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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March 21, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Robert Cox (Tax Reg #948821, DADS #2023-28383)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on January 31, 2025.

On January 22, 2022, Sgt Cox was in a police vehicle at Church Avenue in Brooklyn. An officer in another police vehicle radioed that they witnessed a white BMW commit a traffic violation. When the other police vehicle tried to stop the white BMV, the vehicle fled. The BMW crashed at the corner of Clarkson Avenue and Remsen Avenue. The driver of that vehicle exited the vehicle and fled the scene, he was apprehended and arrested.

One of the passengers in the vehicle, Imani Wilson, exited the vehicle and stood on the sidewalk. Sgt Cox handcuffed Ms. Wilson and handed her off to another officer. Ms. Wilson was taken to the stationhouse; her arrest was voided, and she was released. A second passenger, Tristan Cammock, exited the vehicle and left the scene. He was apprehended by officers and taken to the precinct. There was no probable cause to arrest either Ms. Wilson or Mr. Cammock. There was no indication they had committed any crime, no indication they committed any VTL infraction, and no indication the vehicle was stolen. Both charges were pled against Sergeant Cox as he was the supervisor present during the incident and supervised the arrests.

For the charges of an enforcement action involving the abuse of authority, the disciplinary matrix lists a mitigated penalty of the forfeiture of ten (10) vacation days, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of Termination.

The negotiated settlement deviates from the penalties listed in the NYPD disciplinary guidelines as to the charges of an enforcement action involving the abuse of authority for the following reasons:

Sergeant Cox's fifteen years of service and the fact that he received a score of 7 out of 10, above standards, in his most recent evaluation. Additionally, he has received numerous commendations, including 28 Excellent Police Duty and 33 meritorious duty recognitions. Therefore, given the totality of the circumstances, the CCRB recommends a dismissal of the specifications with the further recommendation that Sergeant Cox receive Training.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board